

Constitution and BiLaws of the Monroeville Baseball Association

(REVISED SEPTEMBER, 2014)

(ARTICLE I)

NAME

The name of this association is the "Monroeville Baseball Association."

(ARTICLE II)

PURPOSE

The purpose of the Association shall be to foster, in the youth of the Monroeville area, the ideals of good sportsmanship via provision of supervised, competitive baseball games, The MBA is also charged with improving skills and developing talent within the local youth, thus, properly molding men and women of the future through athletics.

(ARTICLE III)

MEMBERSHIP

SECTION 1: Any adult person who undertakes some specific function with respect to the operation of the association **MUST** be a registered member.

SECTION 2: Any other adult in good standing may also become a registered member. Membership is good for one year, and runs on a calendar year basis.

SECTION 3: The Executive Board has the right to revoke any adult member for conduct detrimental to the Association.

SECTION 4: **Retention of Membership.**

Only those members who attend at least 50% of the General Membership Meetings during the calendar year are eligible to vote at the election of officers held in September.

SECTION 5: **Recall.**

Any member may be removed from membership by a two-thirds vote of the general membership. Any motion to recall a member will be voted on at the next scheduled membership meeting. **AT LEAST 10 MEMBERS MUST BE PRESENT, EXCLUDING THE EXECUTIVE BOARD, IN ORDER FOR A VOTE TO BE TAKEN.**

(ARTICLE IV)

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ORGANIZATION

SECTION 1: The officers of the Association shall be:

- A. President
- B. Executive Commissioner
- C. First Vice President
- D. Second Vice President
- E. Concessions Manager
- F. Secretary
- G. Treasurer
- H. Tournament Director
- I. Past President

SECTION 2: The Executive Board shall be composed of the following:

- A. The elected Executive Officers B. Immediate past President

Meetings of the Executive Board shall be scheduled by the president, who shall preside. In the president's absence, these duties are assumed by the Executive Commissioner, First Vice President, Second Vice President, Concessions Manager, Secretary, Treasurer and Tournament Director, in that order.

(ARTICLE V)

ELECTION OF OFFICERS

SECTION 1: **Date of Election**

General elections of the Officers will take place at the regular September General Meeting.

SECTION 2: **RULE**

- A. Nominations shall be made in part by the nominating committee which shall:
 - 1. Be appointed by the President.
 - 2. Be composed of three members of the Association.
- B. The Nominating Committee shall identify and secure the consent of the candidate(s) for each office.
- C. Nominations may be made from the floor, provided that prior consent of the nominee has been obtained.

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- D. Elections shall be by secret ballot except that, when only a single candidate has been nominated for each executive office, the secretary shall cast a single ballot.
- E. There shall be no absentee ballots.
- F. Nomination speeches are not permitted.
- G. In the event of a tie vote, each candidate will be given three minutes to address the membership, and a re-vote will take place. If the tie is not broken, the winner will be declared by the flip of a coin.
- H. Elected candidates will assume their responsibilities of office immediately upon the close of the Election Meeting.

SECTION 3: Recall

Any officer may be removed from office by a twothirds vote of the general membership. Any motion to recall an officer will be voted on at the next scheduled membership meeting.

(ARTICLE VI)

DUTIES AND RESPONSIBILITIES

SECTION 1: Office of the President

It shall be the duty of the President to preside at all meetings of the Association. He/She shall be responsible for the coordination of the program and activities of the association. He/She shall appoint the Audit Committee as described in Article VII, Section 4, at the August General Meeting; he/she shall also appoint whatever special committees deemed necessary to further the purposes of the association. In event of resignation or recall of an officer, except the President, a temporary appointment will be made by the President for the duration of the un-expired term. Upon expiration of their term(s) of office, the President shall succeed to the Executive Board until such a time as his successor has fulfilled his/her term(s) as President. The president is also responsible for the generation of a tentative calendar of events, which is to be presented to the membership at the January meeting.

SECTION 2: Office of Executive Commissioner

The Executive Commissioner shall assume duties of the President in absence of latter. The Executive Commissioner shall supervise the League Commissioners and be responsible for the proper functioning of all leagues in the association. He/She shall submit all league rules for approval at the May Executive Board Meeting. He/She shall be a member of the Protest Committee. He/She or an appointed person shall be responsible for reporting all MBA scores and league standings to the local papers. He/She is

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responsible for coordinating the scheduling of umpires, MBA league games and practice sessions.

SECTION 3: Office of First Vice President

The First Vice President shall, in the absence of both the President and Executive Commissioner, assume the duties of the President. The first vice president, shall determine the player equipment requirements of the association and shall be responsible for such other affairs as the President shall direct.

SECTION 4: Office of the Second Vice President

The Second Vice President shall, in the absence of the President, Executive Commissioner and the First Vice President, assume the duties of the President. The Second Vice-President shall coordinate the fund raising affairs of the association and manage such other affairs of the association as the President shall direct. The Second Vice-President shall also assist the First Vice President in the year-end inventory and preparation of said inventory for the January Executive Board Meeting.

SECTION 5: Office of the Concessions Manager

The Concessions Manager shall coordinate the operation of the concession stand. Responsibilities include opening, maintaining, and closing the stand, pre-season set-up/post-season breakdown, as well as training volunteers OR any additional paid personnel. The Concession Manager shall also order/restock items, be responsible for making deposits regularly and monitor the hours of the hired help.

SECTION 6: Office of Secretary

The Secretary shall be responsible for keeping permanent chronological records of all business transacted at the General Meetings and Meetings of the Executive Board, and a current membership list. The records shall be available for reference by the officers, committee chairpersons or any member. The Secretary shall be responsible for all necessary correspondence that concerns the association, and for notifying all members prior to each General Meeting. The secretary is also responsible for the proper identification and recording of all MBA membership meeting attendees. This information will be used to establish those members that are eligible to vote during the September election as discussed in Article 3, Section 4.

SECTION 7: Office of the Treasurer

The Treasurer shall be responsible for receiving the funds of the organization and for keeping accurate record of all funds received and disbursed. The Treasurer shall deposit all funds in an account or accounts in the name of the Association in a bank (or banks) fully covered by Federal Deposit Insurance. The Treasurer, shall sign all checks paid by the organization. The Treasurer shall present a report of collections and disbursements of funds at each General Meetings and prepare additional financial reports as directed by the Executive Board.

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SECTION 8: Office of the Tournament Direct

The Tournament Director shall be In charge of getting all MBA tournaments listed on the MCAA.net site, gathering all nominations for tournament coaches to the board for a vote, scheduling tournament team try-outs and evaluators, running the draw/scheduling meeting for all MBA tournaments, coordinating/scheduling All Star day and Communicating with concessions manager for all of the previous items.

SECTION 9: Executive Board

The Executive Board, shall meet as needed prior to the opening of the season to organize the Association activities for the upcoming season and at any other meetings called by the President, as needed to:

- A. Prepare the agenda for the general meeting.
- B. Taking action on behalf of the general membership should it become impractical to convene a general meeting in time to take appropriate action.
- C. Preparing the annual budget for general membership approval

SECTION 10: Protest Committee

The Protest Committee shall consist of the Director of umpires, Executive Commissioner, and League Commissioner involved. It shall rule on all protests within the MBA. Their decision shall be irrevocable.

(ARTICLE VII)

FINANCIAL MATTERS

SECTION1: Audit Committee

The Audit Committee shall consist of three association members, appointed by the President, to inspect the financial records of the association and make a report at the February General Meeting. Executive Board Members shall not be eligible for the Audit Committee.

SECTION2: All money contributed, donated, etc. will be used at the discretion of the Executive Board

SECTION3: In the event that the MBA be dissolved, all moneys in the Association checking account cash on hand, equipment, etc., will be donated to a charity as determined by a two-thirds vote of the current membership.

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(ARTICLE VIII)

MEETINGS

Regular meetings of the general membership shall be held in January, February, March, April, May, June, August and September of each year at a location convenient to the general membership. The President may call special meetings of the membership. Proper notification for all meetings, giving time, place, and purpose must be given to the membership prior to the proposed meeting date.

(ARTICLE IX)

DEFINITIONS

SECTION 1: Duly Constituted Meetings

A duly constituted meeting of the general membership shall be one for which proper notification is given.

(ARTICLE X)

RULES OF ORDER

The rules contained in "Robert's Rules of Order, Revised" shall govern the association in all cases in which there are no inconsistencies with the Constitution, ByLaws, or Special Rules of Order of this Association.

(ARTICLE XI)

AMENDMENTS

This Constitution may be amended in the following manner:

- A. An amendment must be proposed by a petition signed by not less than five members.
- B. The petition of amendment shall be presented at a regular or special meeting of the general membership for discussion and modification.
- C. Voting on the amendment will take place during the meeting succeeding the one at which the proposed amendment was introduced.

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- D. The amendment shall be enacted if approved by twothirds of the votes cast.

MONROEVILLE BASEBALL ASSOCIATION

(Petition of 51489 presented and approved)

PAGE 10, ARTICLE XI of the MBA CONSTITUTION:

Henceforth, the Monroeville baseball Association will take over the Administrative function for the Monroeville American Legion Post #820.

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1. Standing Leagues of the Association shall be:

- A. Legion League (1519)
- B. Colt League (1517)
- C. Pony League (1314)
- D. Bronco League(1112)
- E. Mustang League(910)
- F. Coach Pitch League(7-8)
- G. Instructional League (5-6)

2. League Commissioners Duties and Responsibilities

- A. It shall be the duty of each League Commissioner to prepare plans for the efficient operation of their league.
- B. He/She shall be responsible for the proper distribution of all playing equipment within his/her league, working in conjunction with the First Vice President.
- C. He/She shall also be responsible for formulating league rules with his/her managers and submitting same to the Executive Commissioner.
League rules shall be submitted in accordance with ByLaw No. 5.
- D. He/She shall be responsible for the condition of the playing fields within his/her league, working with managers and the Executive Commissioner as the situation dictates.
- E. He/She shall be a member of the Protest Committee for all protests within his/her league with the Executive Commissioner and the Director of Umpires.
- F. He/She shall meet with his/her League Managers as often as necessary for the efficient operation of his/her league.
- G. He/She shall not permit any member to assume the title of Manager or Assistant Manager on more than one team in this association.

3. Manager's Responsibilities

- A. He/She shall, at all times, conduct themselves in a courteous manner while striving to fulfill the purpose and objective of the MBA. In addition, all managers must abide by the COACHES CODE OF CONDUCT, as added to these by-laws as amendment No. 1, effective December, 2002.
- B. He/She shall be responsible for setting an example which will assist in maintaining a proper game attitude.
- C. Any deviation from A or B will result in a review by the board for potential discipline action.

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4. Manager's Duties

- A. He/She shall assist the League Commissioner in formulating league rules and be familiar with all playing rules.
- B. He/She shall distribute, collect and maintain all equipment and uniforms.
- C. He/She should attend all regular and special meetings.
- D. He/She shall be responsible for maintaining the condition of his/her playing field as directed by the League Commissioner.
- E. The Manager of the winning team shall call in the game score to his/her Commissioner the night of the game.
- F. He/She shall meet with his/her team sponsor prior to the first league game of the year.

5. League Playing Rules

- A. All leagues within the MBA must submit their respective league rules to the Executive Board prior to the March Executive Board Meeting.

Each set of league rules must include the following:

- 1. Definition and/or source of playing rules.
- 2. League age.
- 3. Minimum playing time per player.
- 4. Definition of starting and stopping time.
- 5. Procedure for established ground rules.

6. Youth Participation

- A. All boys/girls of proper age and residents of Monroeville are eligible; non-residents need Executive Board approval.

7. Transfer of Players Within League

- A. No boys/girls quitting or being dismissed by a team in the league may join another team in the same league without the approval of the executive board.
- B. All other transfers are subject to the executive board's approval.

8. Tournament and Exhibitions

- A. All tournaments outside of the normal "in-house" regular season MUST obtain board approval.

Revised: September 2003